

May 23, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 12481
(FOURTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain non-DOT specification packagings, described as actuators, charged with limited quantities of various hazardous materials. The actuators are transported separately or as part of a valve assembly. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.150, 173.153, and 173.306(a) in that the gross weight of the valve assembly containing the actuator exceeds the 66 pound limitation; § 173.306(a)(1) in that the largest actuator exceeds the 4 ounce limit; and § 173.322 in that the actuator is not an authorized packaging except as described herein.

5. BASIS: This special permit is based on the application of Trac Regulator Company dated March 31, 2004, submitted in accordance with § 107.109 and additional information dated April 22, 2004.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Acetone	3	UN1090	II
Butane <i>see also</i> Petroleum gases, liquefied	2.1	UN1011	N/A
Dichloromethane	6.1	UN1593	III
Ethyl chloride	2.1	UN1037	N/A
Ethyl ether <i>see</i> Diethyl ether	3	UN1155	I
Isobutane <i>see also</i> Petroleum gases, liquefied	2.1	UN1969	N/A
Methanol	3	UN1230	II
Pentanes	3	UN1265	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging is a hermetically sealed metal actuator that opens or closes a valve assembly in response to temperature changes. The actuator contains no greater than 0.5 liters of hazardous material. The actuator is filled at atmospheric pressure with all materials in the liquid state. The actuator is shipped either separately or as part of the valve assembly. The total weight of the valve assembly is over 80 pounds. The actuator and valve assembly must be in conformance with the drawings and specifications submitted with Trac Regulatory Company Incorporated's application on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA).

b. OPERATIONAL CONTROLS -

(1) Shipments are excepted from the requirements of subpart E (labeling) of part 172 of 49 CFR except when offered for transportation or transported by air.

(2) Shipments are excepted from the requirements of subpart F (placarding) of Part 172 of 49 CFR.

(3) Individual actuators, when shipped separately from the valve assembly, must be shipped in strong outside packaging.

(4) Each outside packaging containing an actuator or valve assembly must be marked "DOT-SP 12481" as specified in § 172.301(c).

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or change are made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Transportation of Division 2.1 (flammable gases) is not authorized aboard aircraft unless specifically authorized in the Hazardous Materials Table (§ 172.101).

d. Packagings permanently marked 'DOT-E 12481', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 12481'.

e. Shipping papers displaying 'DOT-E 12481' may continue to be used until October 1, 2007, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and cargo aircraft only.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

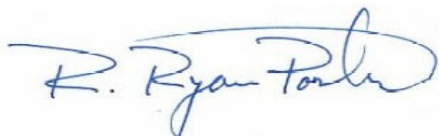
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "R. Ryan Porter", is written over a faint, circular official stamp.

for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: CWFREEMAN/sln